

Supplemental Claim Walkthrough — Form 20-0995

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When to use Supplemental Claim

You file a Supplemental Claim when **you have new and relevant evidence** that wasn't in VA's file when they made the prior decision. VA owes you a "duty to assist" on Supplemental Claims — they'll order new exams or pull new records if your evidence supports it.

"New and relevant" means:

- New: not previously in your file
- Relevant: tends to prove or disprove a fact at issue

Examples:

- A private medical record VA hadn't seen
 - A buddy statement
 - A new C&P exam result
 - A specialist's diagnosis
 - DBQ filled out by a private provider
 - VA records VA didn't pull from another facility
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Filing window — and why it matters

- **File within 1 year** of the prior decision to **preserve your effective date**
- **File after 1 year:** still allowed, but effective date may be the date of the new claim, not the original

***CRITICAL:** If you're approaching the 1-year mark and not sure whether you have enough evidence, file an **Intent to File (ITF)** — **VA Form 21-0966**. That preserves*

your effective date for another year while you gather evidence.

What you'll need

- ☐ A copy of the rating decision being supplemented
 - ☐ All new evidence ready to submit (originals or clear scans)
 - ☐ List of evidence you want VA to retrieve (private treatment records, federal records)
 - ☐ Your reasoning: how does this new evidence change the prior outcome?
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Filling out Form 20-0995

Section I — Veteran Information

Standard. Match VA's records exactly.

Section II — Issue(s) you're claiming

- List each issue separately
- For each, identify the **prior decision date** you're supplementing

Section III — New and relevant evidence

- Box A: Are you submitting evidence with this claim? **YES** if attaching anything.
- Box B: Are you identifying evidence VA should retrieve?
 - List each source: provider name, address, dates of treatment
 - Use VA Form 21-4142 to authorize private record retrieval

Section IV — Treatment records

- Federal facilities (VA, DOD, etc.): VA pulls these automatically — list dates and locations
- Private facilities: must authorize via 21-4142

Section V — Election to opt in

If your prior decision was a Statement of the Case (SOC) under the legacy appeals system, you can opt into the new (AMA) lanes here.

Section VI — Signature

Sign and date.

Strategic tips

1. Don't bury your evidence

If your strongest evidence is a single buddy letter, attach it as the FIRST exhibit. Reviewers read top-to-bottom.

2. Get a DBQ from a private provider

A Disability Benefits Questionnaire (DBQ) filled out by your treating physician is one of the strongest forms of evidence on a Supplemental Claim. VA cannot ignore an examiner's findings — they have to address them.

3. Use lay statements wisely

Buddy letters from spouses, parents, fellow service members carry weight on:

- Symptom observations (severity, frequency, triggers)
- In-service events (combat, MST, accidents)
- Continuity of symptoms since service

4. Stack evidence around a single rating criterion

Don't submit 200 pages of records hoping VA finds your case. Build a 5-page brief that explicitly walks through the rating criteria and shows which evidence proves which element.

After filing

1. **Confirmation** — VA acknowledges within ~30 days
2. **Duty to assist** — VA orders any necessary exams/records
3. **C&P exam** — if needed, you may be scheduled (4–8 weeks)
4. **Decision** — typical turnaround: 4–6 months
5. **Outcome:**
 - Granted (with original effective date preserved if filed within 1 year)

- Denied — next move: file another Supplemental with more evidence, or file HLR if you think VA misapplied the law

Common mistakes

1. **Submitting evidence VA already has.** Not "new" — won't trigger duty to assist.
 2. **Forgetting Form 21-4142** for private records. VA can't retrieve without authorization.
 3. **Filing after 1 year unnecessarily.** Always file ITF if you're at the deadline.
 4. **Not connecting evidence to the rating criteria.** Make it easy for the rater to grant.
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Sample cover statement

Re: Supplemental Claim — [Your Name], File Number [X]

I am submitting a Supplemental Claim with new and relevant evidence regarding the rating decision dated [DATE].

Issue 1: [Specific contention]

The prior decision found [SUMMARY]. I am submitting the following new and relevant evidence:

- *Exhibit A: [Description, source, date]*
- *Exhibit B: [Description, source, date]*

This evidence is relevant because it [SPECIFIC CONNECTION TO RATING CRITERIA OR FACTUAL ELEMENT].

Requested action: [SPECIFIC OUTCOME with effective date]

[Repeat for each issue]

Respectfully submitted, [Signature, date]

Where to file

- **Online:** VA.gov → Disability → File a Supplemental Claim
 - **Mail:** Department of Veterans Affairs, Claims Intake Center, PO Box 4444, Janesville, WI 53547-4444
 - **Fax:** 844-531-7818
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